

26NNCV00394 26NNCV00394

County: los-angeles

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Case Number: 26NNCV00394 Hearing Date: August 28, 2026 Dept: B

Hon. Victor Avila, Dept B

Demurrer to Complaint

Hearing Date: 8/28/26

CASE NO.: 26NNCV00394

CASE NAME: Chavez

v. State of California, et al.

Moving Party: Defendant City of Monterrey

Responding Party: Plaintiff Michael Chavez

Notice: Sufficient

Ruling: SUSTAINED

in part, OVERRULLED in part.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested AND ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a negligence action. Plaintiff

Michael Chavez alleges that defendants City of Monterrey (Defendant), the County of Los Angeles, and the State of California negligently and carelessly maintained Alhambra Ave. where Plaintiff was involved in a motor vehicle accident.

On May 27, 2026, Defendant filed the instant demurrer as to the second, third, and fourth causes of action in Plaintiff's Complaint.

On August 17, 2026, Plaintiff filed an opposition.

On August 21, 2026, Defendant filed a reply.

LEGAL

STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Further, the court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper

matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349 [court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”]; *Kong v. City of Hawaiian Gardens Redevelopment Agency* (2002) 108 Cal.App.4th 1028, 1037 [“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”]; *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 [“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Meet and Confer

Code of Civil Procedure section 430.41

requires that before the filing of a demurrer the moving party “shall meet and confer in person or by telephone” with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc. § 430.41(a)(3).)

Defendant’s counsel declares they sent a meet

and confer letter to Plaintiff's counsel on March 30, 2026. (Beizai Decl., ¶ 2.) Defendant's counsel declares that they communicated

with Plaintiff's counsel on several occasions between April 7 and May 19, 2026, to address pleading deficiencies. (Beizai Decl., ¶ 3.) Plaintiff does not address meet and confer efforts.

Based on declaration of Defendant's counsel, the parties have complied with meet and confer requirements.

Demurrer

Defendant demurs

to the second cause of action for general negligence, third cause of action for premises liability and fourth causes of action for dangerous condition of public property for failure to state a claim. (Mot., p. 2.)

Second and Third

Causes of Action: General Negligence and Premises Liability

To state a claim for negligence, Plaintiff

must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

"The elements of

a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages." (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) "Premises liability is grounded in the possession of the premises and the attendant right to control and manage the premises." (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158, quotation marks omitted.)

Defendant argues

that the Supreme Court rejected the theory that a public entity can be liable for general negligence in California citing Zelig v. County of Los Angeles. (Mot., p. 8; Zelig v. County of Los Angeles (2002) 27 Cal.4th 1112, 1131-1132.)

Defendant argues that Plaintiff's claims for general negligence and premises liability are facially invalid because they are based on common law theories and fail to state a statutory basis of liability or duty. (Mot., pp. 8-9.)

Further, Defendant argues that these causes of action are duplicative of Plaintiff's fourth cause of action for Dangerous Condition of Public Property.

(Mot., p. 9.)

In opposition,

Plaintiff acknowledges that any cause of action asserted against a public entity requires a statutory basis. (Opp., p. 9.) Plaintiff does not make arguments against Defendant's demurrer as to these causes of action. In reply, Defendant reiterates that concession. (Reply, p. 7.)

Here, "a public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person" except as provided by statute. (Gov. Code, § 815(a).) Since Plaintiff cannot create a statutory basis for common law negligence, Plaintiff will not be afforded leave to amend.

Accordingly, Defendant's demurrer to the second and third causes of action are SUSTAINED without leave to amend.

Fourth Cause of Action: Dangerous
Condition of Public Property

"Under the Government Claims Act, there is no common law tort liability for public entities in California; instead, such liability must be based on statute." (R.L. v. Merced City School Dist., (2025) 114 Cal.App.5th 89, 104.)

A public entity may be liable for a dangerous condition of public property if the property was in a dangerous condition at the time of the injury, the dangerous condition caused the injury, the condition created a reasonably foreseeable risk of the type of injury that occurred, and either a negligent or wrongful act or omission of an employee within the scope of their employment created the condition, or the public entity had actual or constructive notice of the dangerous condition in sufficient time to take measures to protect against it. (Gov. Code § 835; Sun v. City of Oakland (2008) 166 Cal.App.4th 1177, 1183.)

Defendant argues that under the Tort Claims Act, filing a Claim for Damages with the public entity (Claim) is a condition precedent to filing a civil complaint for damages (Complaint). (Mot., p. 9.) Further, Defendant argues that in order to be compliant with the

presentation requirement, the facts alleged in the Complaint must be consistent with the facts contained in the Claim. (Ibid.) Defendant argues that in the Claim, Plaintiff simply stated that they were walking when a vehicle travelling on the subject road struck Plaintiff leaving them unresponsive. (Mot., p. 10.) However, in the operative Complaint with the Court, Plaintiff describes failure to install adequate traffic signals or signs, insufficient warnings signs, design defects, and/or negligent implementation of plan or design. (Ibid; Comp., ¶ GN-3.) Defendant argues that the purpose of having claimants present the Claim to the public entity prior to filing a Complaint with the court is to provide the public entity with sufficient information to investigate and settle prior to litigation. (Mot., pp. 10-11.) Since Plaintiff did not provide sufficient factual information, Defendant argues that they were unable to properly investigate and Plaintiff did not comply with the presentation requirement. (Mot., p. 11.) Lastly, Defendant argues that in either case, failure to install traffic signals is not a dangerous condition under Government Code section 830.4. (Ibid.)

In opposition, Plaintiff argues that he has pled the requisite facts in the Claim to city made prior to the operative Complaint with the court. (Opp., pp. 4-5.) Plaintiff argues that a claim to the public entity need not "specify each particular act" that caused the injury, and a complaint with the Court may elaborate upon the facts stated in the claim so long as it is not predicated upon an entirely different set of facts. (Opp., p. 5; *Stockett v. Association of California Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal.4th 441, 446-447.) Plaintiff argues that the Claim and Complaint are based on the same set of facts, therefore complying with the presentation requirements and providing sufficient factual information. (Opp., pp. 6-7.) Lastly, Plaintiff argues that section 830.4 does not preclude their claim because the cause of action is not premised solely on the absence of traffic signals, the Complaint alleges several inadequacies that may have negligently caused Plaintiff's injuries. (Opp., p. 8.)

In reply, Defendant argues that Plaintiff's Claim to the city falls far short of presentation requirements because it fails to "describe what the entity is alleged to have done" that allegedly contributed to Plaintiff's injury. (Reply, p. 4.) Defendant argues that the information provided was insufficient to conduct an actual investigation of the incident. (Reply, p. 5.)

Claim presentation is a prerequisite to litigation against a local public entity or employee thereof based not only on tort liability, but on any claim for “money or damages.” (Gov. Code, § 910; *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 374.) In *Nelson v. State of California*, the Court held that a “complaint is vulnerable to a demurrer if it alleges a factual basis for recovery which is not fairly reflected in the written claim” presented to the public entity. (*Nelson v. State of California* (1982) 139 Cal.App.3d 72, 79.) However, as the Court in *Stockett* described, “a claim need not contain the detail and specificity required of a pleading.” (*Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal.4th 441, 446.) Where the complaint merely elaborates or adds further detail to a claim but is predicated on the same fundamental actions or failures to act by the defendants, courts have generally found the claim fairly reflects the facts pled in the complaint.” (*Id.* at 447.)

Here, Plaintiff describes “why [he] believes the state is responsible for damages or injury” in an addendum which is part of the Claim submitted to the City in Exhibit A of Plaintiff’s Complaint with the Court. (Comp., Exh. A.) Plaintiff states “failure to install adequate traffic signals or signs, insufficient warning signs, poorly designed intersection, obstructed intersection, improper speed limit for related roads, design defects, negligent implementation of plan or design, failure to comply with changed circumstances” as possibilities leading to the incident. (*Ibid.*) This is the same page on which Plaintiff states that he was walking and struck by a vehicle as cited by Defendant. Plaintiff lists similar, if not more restrained, reasons in the Complaint filed with the Court. (Comp., ¶ GN-3.) The facts are based on the same incident and the same accusations.

Accordingly, Defendant’s demurrer as to the fourth cause of action is OVERRULED.

CONCLUSION AND ORDER

Defendant City of Monterrey’s demurrer as to the second cause of action for general negligence and third cause of action for premises liability are SUSTAINED without leave to amend.

Defendant's

demurrer as to the fourth cause of action for dangerous condition of public property is OVERRULED.

MOVING PARTY shall provide notice and

provide a proposed order consistent with this ruling within 10 days from this date.